



Article: 46

Warrant Article Title:

ZONING BYLAW AMENDMENT / ANIMAL DAYCARE USES

Warrant Article Text:

To see if the Town will vote to amend Section 2, Definitions, of the Zoning Bylaw, to define animal daycare, and Section 5, District Regulations, of the Zoning Bylaw, to allow animal daycare uses in business districts; or take any action related thereto.

Requested By:

the Redevelopment Board)

Report Excerpt:

The Board recommends Favorable Action (5-0).

The purpose of Article 46 is to add the definition of Animal Day Care to the Zoning Bylaw and expand its use to parcels with Business District zoning. Over the last several years, multiple dog daycare centers have sought to bring their businesses to Arlington. Currently, the Zoning Bylaw restricts animal daycare to Industrial zone areas. Arlington only has 154 parcels zoned for Industrial use, of which only 50 have buildings currently used for commercial or industrial purposes. The Town presently has three animal daycare businesses, one of which opened within the past year, showing demand for this service by Arlington residents. Animal daycare businesses will still be required to comply with all other local and state regulations, as outlined in M.G.L. Chapter 140, Section 137A-C, Ollie's Law, and the Town Bylaw Title VIII, Article 2, Section 5.

Article 46 will remove the barrier to entry and expand the economic opportunity to provide this service by allowing animal

daycare by Special Permit in most Business Districts and by right in the B4 Vehicle Oriented Business District. Many of the Town's parcels zoned B4 are located near Industrial zoned parcels, making them particularly appropriate for this use, and the Special Permit process will provide appropriate review for animal daycare centers in the other business districts. During the Board discussion, the Board highlighted provisions such as the requirement for a Special Permit to ensure that the use would not permit overnight boarding as it is for day-use only. The Board agreed that expanding where Animal Day Care uses are permitted would be beneficial to existing and new businesses, as well as to Arlington residents.

Vote Language:

That the Zoning Bylaw be and hereby is amended as follows:

Amend SECTION 2, Definitions, as follows:

Animal day care: Kennel, indoor recreation and/or training centers for animals operated on a daytime-only basis. Overnight boarding of animals is prohibited.

Amend SECTION 5.5.3, Use Regulations for Business Districts, as follows:

Class of Use	B1	B2	B2A	B3	B4	B5
Personal, Consumer and Business Services						
...						
<u>Animal Day Care</u>	<u>SP</u>	<u>SP</u>	<u>SP</u>	<u>Y</u>	<u>SP</u>	